

24STCV26603 24STCV26603

County: los-angeles
Division: Civil Law and Motion
Department: 506
Hearing date: 2026-07-28
Source URL:
https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C506%2C07%2F28%2F2026
Source SHA-256: 2dbf1d2973940a980e7a36a65834f7f9f6ae5c9395533e7fcf545bfb0ff270a7

Case Number: 24STCV26603 Hearing Date: July 28, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

AUSTIN BETTERS,

Plaintiff,

vs.

RANDEL MANAGEMENT SERVICE INC.,

Defendant.

)

)

)

)

)

)

)

)

)

)

)

CASE NO.: 24STCV26603

[TENTATIVE] ORDER SUSTAINING IN PART AND
OVERRULING IN PART DEMURRER

Dept. 506

8:30 a.m.

July 28, 2026

On

October 11, 2024, Plaintiff Austin Betters filed this action against Defendant Randel Management Service Inc., alleging (1) negligence, (2) negligent infliction of emotional distress ("NIED"), (3) bad faith, (4) breach of fiduciary duties, (5) breach of covenant of quiet enjoyment, and (6) negligence per se.

On

June 3, 2025, Plaintiff filed an Amendment to Complaint, correcting Defendant's name to R&E Management Inc.

On

October 15, 2025, Defendant (identifying itself as R&E Management Company) filed a demurrer.^[1]

DISCUSSION

A

demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts

read the allegations liberally and in context, accepting the alleged facts as true. (Nolte v. Cedars-Sinai Medical Center (2015) 236 Cal.App.4th 1401, 1406.)

A. The Complaint Properly Alleges Habitability
Claims and Names a Defendant.

Defendant

argues that “there is no lease attached to the Complaint, and no adequate description of the terms and certainly no fact alleged which connect R&E Management Co[.] to the alleged damages.” (Demurrer at p.

3.) Some of Plaintiff’s habitability claims

arise from common law. Pleading the contractual

terms of the lease is not required. Indeed,

tenancy does not require or depend upon the existence of a formal lease agreement. (See, e.g., Civ. Code, §§ 1943-1946.)

Additionally,

Defendant argues that “[e]ven if there was evidence of an agreement (which there is not) between an alleged Landlord and the Plaintiffs, R&E MANAGEMENT COMPANY is not even the landlord at the Plaintiff’s alleged place of residence and owes no direct duty to Plaintiffs.” (Demurrer at p. 4.) This is a factual issue that requires evidence and cannot be resolved on demurrer.

The

demurrer is overruled on this ground.

B. Plaintiff Sufficiently Alleges NIED (Second
Cause of Action).

Defendant

argues, “Even if there was an alleged agreement (which there is not) between an alleged Landlord and the Plaintiffs, R&E MANAGEMENT COMPANY is not a legal entity and owes no duty to Plaintiffs. As noted

above, R&E MANAGEMENT COMPANY is not in privity with Plaintiffs in any shape or form. . . . Accordingly, the demurrer should be sustained because defendant R&E

MANAGEMENT COMPANY should not have been a party to this action in the first place. Naming a non-existent party automatically causes

this cause of action to fail.” (Demurrer

at p. 4.) This is not a proper ground for demurrer.

Defendant

also argues that “[n]either a duty nor negligence nor causation has been properly pleaded.” (Demurrer at p. 5.) A cause of action for negligence requires (1) a legal duty owed to the plaintiff to use due care, (2) breach of that duty, (3) proximate causation, and (4) damages. (Artiglio v. Corning Inc. (1998) 18 Cal.4th 604, 614; County of Santa Clara v. Atlantic Richfield Co. (2006) 137 Cal.App.4th 292, 318 [citing Artiglio].)

Plaintiff

alleges that an unresolved water leak caused mold and mushrooms to grow in his apartment. (Complaint at p. 3, ¶¶ 1-2, 6-8.) Plaintiff notified the landlord, but the issue remained unresolved, culminating in violations from the health department and a complete ceiling collapse. (Complaint at p. 3, ¶¶ 4-5, 9-13.) Even after repairs, the habitability issues remained. (See Complaint at pp. 4-5, ¶¶ 15-40.) “[A]s a direct result of the mold and the exposure to toxic particles, [Plaintiff] has incurred significant damages, including but not limited to expenses related to moving out, relocation, storage costs, and medical expenses, pain and suffering, and severe anxiety.” (Complaint at p. 6, ¶ 42.) Defendant “had a duty to prevent the danger to Subject Property and to Plaintiff and to prevent the aforementioned illness, emotional injury and homelessness to Plaintiff.” (Complaint at p. 7, ¶ 12.) This sufficiently alleges that Defendant breached its duty of care and caused Plaintiff’s damages.

The

demurrer to the second cause of action is overruled.

C. As Pled, Bad Faith is Not a Valid Cause of Action (Third Cause of Action).

Defendant

correctly observes that “‘bad faith’ is not even a cause of action in its own right and Plaintiff must demonstrate how the alleged ‘bad faith’ actions contributed to an actual violation of law or code. Just stating ‘bad faith’ as a cause of action is vague, ambiguous, and simply not a cause of action.” (Demurrer at p. 5.)

Plaintiff

contends that when “[l]iberally read, this states a claim for breach of the implied covenant of good faith and fair dealing, a recognized California cause of action,” and the allegations “support bad faith as both a contract and tort theory.” (Opposition at p. 6.)

The
demurrer to the third cause of action is sustained.

D. Plaintiff Sufficiently Alleges a Fiduciary
Relationship (Fourth Cause of Action).

Defendant
argues that “the complaint fails to allege or provide proof of any written or oral agreement or any covenant between the parties creating fiduciary duties.” (Demurrer at p. 5.)

A
cause of action for breach of fiduciary duty requires (1) a fiduciary duty, (2)
breach of the duty, and (3) damage caused by the breach. (Charnay v. Cobert, (2006) 145 Cal.App.4th
170, 182.) “A fiduciary relationship is ‘
“ ‘any relation existing between parties to a transaction wherein one of the parties
is in duty bound to act with the utmost good faith for the benefit of the other
party. Such a relation ordinarily arises
where a confidence is reposed by one person in the integrity of another, and in
such a relation the party in whom the confidence is reposed, if he voluntarily accepts
or assumes to accept the confidence, can take no advantage from his acts relating
to the interest of the other party without the latter’s knowledge or consent . .
. . . ’ ” (Wolf v. Superior Court
(2003) 107 Cal.App.4th 25, 29.)

Plaintiff
alleges, “By virtue of the relationship between Plaintiff as lessee of the Premises
and Defendant, as the property management company . . . [Defendant] stands as a fiduciary
to Plaintiff.” (Complaint at p. 8, ¶ 20.) This sufficiently alleges a fiduciary relationship. A contract is not required.

The
demurrer to the fourth cause of action is overruled.

E. Plaintiff Sufficiently Alleges Breach
of the Covenant of Quiet Enjoyment (Fifth Cause of Action).

As

with the fourth cause of action, Defendant argues that the fifth cause of action “the complaint fails to allege or provide proof of any written or oral agreement or any covenant between the parties creating fiduciary duties, or any duties that would be owed,” and “[t]he non-existence of a covenant in this case makes claims of a breach of an alleged covenant vague and ambiguous.” (Demurrer at p. 5.)

“In the absence of language to the contrary, every lease contains an implied covenant of quiet enjoyment, whereby the landlord impliedly covenants that the tenant shall have quiet enjoyment and possession of the premises.” (Andrews v. Mobile Aire Estates (2005) 125 Cal.App.4th 578, 588.)

Plaintiff

alleges the existence of a rental agreement between the parties, and “[i]mplied in the rental agreement between Defendants and Plaintiff is a covenant that the Defendants would not and will not interfere with Plaintiff’s quiet enjoyment of the premises during the term of their respective tenancies.” (Complaint at p. 9, ¶ 26.) Defendant breached this covenant through its “failure and refusal to repair the alleged habitability violations and to maintain The Property in a habitable condition and in a condition consistent with the purpose for which it was rented.” (Complaint at p. 9, ¶ 27.)

The demurrer to the fifth cause of action is overruled.

CONCLUSION

The demurrer to the third cause of action is SUSTAINED with 30 days’ leave to amend.

The demurrer is otherwise OVERRULED.

A Case Management Conference is scheduled for _____ at 8:30 a.m.

Moving party to give notice.

Parties

who intend to submit on this tentative must send an email to the Court at indicating intention to submit. If all parties in the case submit on the tentative ruling, no appearances before the Court are required unless a companion hearing (for example, a Case Management Conference) is also on calendar.

Dated this 28th day of July 2026

Hon. Thomas D. Long

Judge of the Superior
Court

[1] Although the caption page identifies counsel as “Attorney for Defendants R&E MANAGEMENT COMPANY; MANTINI TE R TRUST,” the Notice of Motion states, “Defendant R&E MANAGEMENT COMPANY (‘Defendants’) will and hereby do demurrer to the Complaint of Plaintiff AUSTIN BETTERS, an individual; (‘Plaintiff’).” Accordingly, this demurrer is brought by only Defendant R&E Management Inc., and Defendant Mantini TE R Trust has not yet filed a response to the Complaint.